

Tentative Rulings for August 6, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 501

Begin at the next page

(34)

Tentative Ruling

Re: **Bankers Healthcare Group, LLC v. Candler**
Superior Court Case No. 25CECG03985

Hearing Date: August 6, 2026 (Dept. 501)

Motion: by Plaintiff for an Order Compelling Responses of Defendant Leroy Candler Jr. to Request for Production of Documents, Set One; for an Order Deeming Requests for Admissions, Set One, admitted by Defendant Leroy Candler Jr.

Tentative Ruling:

To deny, without prejudice, Plaintiff's motion for an order compelling responses to discovery. To deny, without prejudice, Plaintiff's motion for an order deeming requests for admission admitted by Defendant Leroy Candler Jr.

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Explanation:

A party that fails to serve a timely response to a discovery request waives "any objection" to the request. (Code Civ. Proc., §§ 2031.300(a), 2033.280(a).) The propounding party may move for an order compelling a party to respond to the discovery request. (Code Civ. Proc., § 2031.300(b).) In the case of requests for admission, the propounding party may move for an order that the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280(b).)

Here, plaintiff seeks an order compelling responses without objections to request for production. Plaintiffs also request an order deeming the request for admissions admitted by defendant. The declaration of Joshua P. Friedman filed with each motion attests to the discovery having been served on December 12, 2025 and attaches the discovery requests as Exhibit A to each motion. (Friedman Decl., ¶ 2, Exh. A.) The exhibits do not include the proof of service evincing service upon defendant on December 10, 2025. As of April 29, 2026 no responses had been received and the instant motions were filed. (*Id.* at ¶ 4.)

All that needs to be established to support an order compelling initial responses to discovery is to show that the discovery was properly served, and that no responses were received by the due date. The same is true for plaintiff's motion to deem requests for admission admitted. While this is not an express requirement, attaching copies of the discovery served including the proof of service is the standard manner of proving service on a motion to compel. Here, copies of the discovery requests have been attached to counsel's declaration without the proofs of service. Counsel's declaration stating the date of service does not include the information required by statute to prove service. (See Code Civ. Proc., § 1013b.) Accordingly, the court cannot grant the motions.

Issued By: KCK **on** 08/03/26.
(Judge's initials) (Date)

(03)

Tentative Ruling

Re: ***Swan v. Stoll***
Case No. 23CECG00336 (lead case), consolidated with ***Swan v. Tshibanda***, case no. 22CECG02913

Hearing Date: August 6, 2026 (Dept. 501)

Motion: Plaintiff's Motion for Leave to File a Second Amended Complaint in *Swan v. Tshibanda* ("Swan 1")

Plaintiff's Motion for Leave to File a Third Amended Complaint in *Swan v. Stoll* ("Swan 2")

Tentative Ruling:

To deny plaintiff's motion for leave to file a second amended complaint in *Swan v. Tshibanda* ("Swan 1"), without prejudice, for failure to file a proof of service showing that she served the motion on defendants. Her proposed second amended complaint also does not contain all of the proposed causes of action and allegations mentioned in the motion. (Code Civ. Proc., § 473, subd. (a)(1).)

To deny plaintiff's motion for leave to file a third amended complaint in *Swan v. Stoll* ("Swan 2"), as plaintiff's proposed fraud claims are time-barred. (*Ibid.*)

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Explanation:

Motion to File Second Amended Complaint in Swan 1: Under Code of Civil Procedure section 473, subdivision (a)(1), "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect... The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars..."

"Code of Civil Procedure section 473, which gives the courts power to permit amendments in furtherance of justice, has received a very liberal interpretation by the courts of this state.... In spite of this policy of liberality, a court may deny a good amendment in proper form where there is unwarranted delay in presenting it.... On the other hand, where there is no prejudice to the adverse party, it may be an abuse of discretion to deny leave to amend.' 'In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial.... Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ...

and the defendant will not be prejudiced.'" (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159, citations omitted.)

Here, plaintiff has complied with the basic requirements of bringing a motion to amend, including providing a copy of the proposed second amended complaint and her own declaration, in which she explains the basis for the amendment and the reasons she did not seek to amend earlier. While plaintiff has delayed for several years before seeking leave to amend, she has provided a sufficient explanation for her delay, including the fact that the amendment is based on recently obtained discovery, difficulties obtaining discovery from defendants and the withdrawal of her attorney from the representations. Therefore, plaintiff has shown good cause to grant leave to allow her to file her second amended complaint.

However, plaintiff has not filed a proof of service showing that she served defendants with her motion and supporting papers. Therefore, she has not complied with the requirements of Code of Civil Procedure section 1005, subdivision (b), which requires that all moving and supporting papers must be served at least 16 court days before the hearing date for the motion. Defendants have not opposed the motion, so they have not waived proper notice of the motion. Therefore, the court intends to deny the motion to allow plaintiff to file her second amended complaint without prejudice for failure to give proper notice of the motion.

In addition, the proposed SAC submitted by plaintiff does not include all causes of action that were alleged in the prior complaint, nor does it include the new alter ego allegations or the new sixth cause of action for fraud/undue influence that plaintiff stated in her motion that she wanted to add to the SAC. The proposed SAC is thus incomplete, so even if the court were to ignore the lack of proper notice, the court would not allow plaintiff to file her proposed SAC in its present form.

Motion to File Third Amended Complaint in Swan 2: As discussed above, judicial policy favors resolution of cases on the merits, and thus the court's discretion as to allowing amendments will usually be exercised in favor of permitting amendments. This policy is so strong, that denial of a request to amend is rarely justified, particularly where "the motion to amend is timely made and the granting of the motion will not prejudice the opposing party." (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) Even so, "...a court has ample discretion to deny a motion for leave to amend where a proposed amendment is legally futile or where there has been inexcusable delay in making the motion. . ." (*Jo Redland Trust, U.A.D. 4-6-05 v. CIT Bank, N.A.* (2023) 92 Cal.App.5th 142, 161-162.)

Here, plaintiff seeks leave to file a third amended complaint that would allege new causes of action for fraud against Northwest Baptist Church and Will Stoll. She claims that she did not learn the facts underlying her fraud claims until recently, as defendants made misleading statements about their relationship with co-defendants Tshibanda and his company, United for the Future, and whether Tshibanda and United were their agents. She claims that she first realized that Tshibanda was not Northwest Church's agent in August of 2025 when he finally answered her interrogatories regarding his relationship with the Church. Now, she seeks to allege the new claims against the Church and Stoll based on the theory that Tshibanda and United were the Church's ostensible rather than actual agents.

Previously, the court denied plaintiff's motion to file the third amended complaint against the Church because she had not alleged any facts showing that the delayed discovery rule applied to her proposed fraud claim. The court noted her fraud claim seemed to be time-barred, and that plaintiff had not alleged facts showing that she did not learn of the facts underlying the claim until less than three years before she sought to amend the complaint.

Now, in her renewed motion to amend, plaintiff claims that she learned about the facts regarding the ostensible agency relationship less than three years ago, and thus the new claims are not time-barred.

"An action for relief on the ground of fraud or mistake. . ." must be brought within three years. (Code Civ. Proc., § 338, subd. (d).) "The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (*Id.*) However, "[a] plaintiff is held to her actual knowledge as well as knowledge that could reasonably be discovered through investigation of sources open to her." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1109.)

Here, most of the facts constituting the alleged fraud occurred in 2018, when Stoll and Northwest Church allegedly pressured plaintiff into accepting \$65,000 to resolve her claim against Tshibanda and United for the Future, and then later failed to ensure that Tshibanda actually paid plaintiff as promised. (SAC, ¶¶ 15-36.) Plaintiff also alleges one incident in January 17, 2021, where she asked Stoll about when she was going to be repaid for the money that Tshibanda took from her, and Stoll allegedly yelled at her, called her a liar, and had her removed from the Church property by security. (*Id.* at ¶¶ 38-39.) It is not clear whether the January 17, 2021 incident constitutes part of her fraud claim, as nothing Stoll did at that time seems to support a fraud cause of action. In any event, plaintiff's second amended complaint clearly shows that she was aware of the basic facts underlying the new fraud claims by 2018. However, she did not file her complaint against the Church and Stoll until January 30, 2023, more than three years after the claims accrued. Thus, the fraud claims appear to be time-barred on their face.

In her latest motion to amend, plaintiff repeats most of the same facts that supported her prior motion, which only confirm that she has been aware of the facts underlying her fraud claims since 2018. She also argues that the cause of action did not begin to accrue until February 2025, because she previously believed that Tshibanda and United were agents of Northwest Baptist Church and she did not begin to suspect that they were not agents of Northwest Baptist Church until February 2025. She only confirmed that fact following discovery responses from the Tshibanda defendants received in August 2025. She also alleges that defendants have failed to provide full and complete responses to her discovery requests and have provided misleading answers to some requests, which caused her to believe that Tshibanda was the Church's actual agent, when in fact he was only its ostensible agent.

However, regardless of when plaintiff learned of the exact nature of the relationship between the Tshibanda defendants and the Church, it is clear from her allegations in the prior complaints and her declaration in support of the latest motion to amend that she has always known or believed that Tshibanda had either an actual or ostensible agency relationship with the Church. In fact, she states in her declaration in support of the present motion that she repeatedly referred to Tshibanda as a staff member and member of the clergy for the Church in her earlier complaints. (Swan decl.,

¶ 22.) She states that the Church's responses to discovery appeared to confirm that Tshibanda was a member of the clergy and an agent of the Church. (*Ibid.*)

Therefore, plaintiff has believed from the outset of the case that Tshibanda was the Church's agent and a clergy member. If she believed that he was an agent of the Church, then she had all the facts she needed to bring a claim for fraud against the Church and Stoll arising out of Tshibanda' s allegedly fraudulent acts since 2018. Since she failed to file her fraud claims until more than three years after she obtained all the facts she needed to bring her claims, her claims are now time-barred.

Plaintiff seems to be arguing that she did not have sufficient facts to bring a fraud claim against the Church or Stoll until she learned that Tshibanda was not the Church's actual agent, and that he was instead only the Church's ostensible agent. Yet, regardless of whether Tshibanda was an actual agent or an ostensible agent of the Church, the Church could still potentially be liable for his allegedly fraudulent conduct.

“[A] person is liable for the torts committed by her agent within the scope of the agency. There are two types of agency—actual and ostensible. Actual agency is based on *consent*, and turns on whether the principal has the right to control the agent's conduct. [¶] Ostensible agency is based on *appearances*, and turns on whether the ‘the principal intentionally, or by want of ordinary care, causes a third person to believe another to be his agent’ even though the third person is not *actually* an agent.” (*Pereda v. Atos Jiu Jitsu LLC* (2022) 85 Cal.App.5th 759, 768, citations omitted, italics in original.)

Thus, regardless of whether the agency is actual or ostensible, the principal is still equally liable. As a result, it does not matter for the purpose of the accrual of the statute of limitations when plaintiff learned that Tshibanda was the Church's ostensible agent, as opposed to its actual agent. The key issue is when plaintiff knew or suspected the facts that underlie her fraud claims, including when plaintiff knew or suspected that Tshibanda was acting as the Church's agent, whether actual or ostensible. Here, plaintiff admits that she had all of the basic facts regarding her fraud claims in 2018, and that she always believed that Tshibanda was acting as the Church's agent. However, she did not file her complaint against the Church and Stoll until January 30, 2023, more than three years after her fraud claim accrued. Therefore, her proposed fraud claims are time-barred.

Because plaintiff's new fraud claims are time-barred, it would be futile to grant leave to amend, as there is no way for plaintiff to allege a valid cause of action for fraud. As a result, the court intends to deny the motion for leave to file a third amended complaint against the Church and Stoll.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/04/26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **A.M. v. Fresno Unified School District**
Superior Court Case No. 22CECG02656

Hearing Date: August 6, 2026 (Dept. 501)

Motion: Motion to Enforce Settlement

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/04/26
(Judge's initials) (Date)

(46)

Tentative Ruling

Re: **California State University, Fresno Association, Inc. v. TWG, LLC**
Superior Court Case No. 26CECG00476

Hearing Date: August 6, 2026 (Dept. 501)

Motion: by Plaintiff for Order of Discharge and Fees

Tentative Ruling:

To grant.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Explanation:

Plaintiff California State University, Fresno Association, Inc. ("Plaintiff") seeks an order under Code of Civil Procedure section 386 discharging it from liability for funds deposited with the court and dismissing it from this action.

The court finds that Plaintiff has complied with the requirements of section 386¹ and is entitled to be discharged from any further liability to Defendants TWG, LLC and Mentor Capital, Inc. ("Defendants") and dismissed from this action.

Plaintiff is entitled to an award of attorneys' fees and costs to cover the cost of bringing and litigating the present action. Under Code of Civil Procedure section 386.6, subdivision (a), "In ordering the discharge of such party, the court may, in its discretion, award such party his costs and reasonable attorney fees from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a).)

Plaintiff requests attorneys' fees of \$3,706.00 and costs of \$927.89, totaling an award of \$4,633.89. Upon review of the billing records, this appears to be a reasonable amount of requested attorneys' fees and costs.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/04/26
(Judge's initials) (Date)

¹ Plaintiff's request for judicial notice is granted.

(47)

Tentative Ruling

Re: **Matthew Lieb v. Elizabeth Flores**
Superior Court Case No. 24CECG02305

Hearing Date: August 6, 2026 (Dept. 501)

Motions: Plaintiff's Motion for Leave to Amend Complaint

Tentative Ruling:

To find Plaintiff's motion for leave to amend the complaint is moot.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Explanation:

Plaintiff, Matthew Lieb, ("Lieb") filed the motion to amend his complaint against defendant Lyft, Inc. ("Lyft") on March 10, 2026. On April 27, 2026, Lieb dismissed his claims against Lyft on April 27, 2026.

Accordingly, Lieb's motion seeking leave to file a first amended complaint is moot.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/04/26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Marvin Gonzalez Colindres v. American Honda Motor Co., Inc.**

Superior Court Case No. 25CECG01016

Hearing Date: August 6, 2026 (Dept. 501)

Motions(x2): Defendant's Motion to Compel Compliance with the December 11, 2025 Court Order
Defendant's Motion to Compel Production of Plaintiff's Vehicle for Inspection

Tentative Ruling:

To find defendant's motion to compel compliance with the December 11, 2025 Court Order is moot.

To grant defendant American Honda Motor Co., Inc.'s motion to compel plaintiff Marvin Gonzales Colindres to present his 021 Honda Pilot, VIN: 5FNYP5H21MB030555, within 14 days of service of the order by the clerk.

To grant defendant American Honda Motor Co., Inc.'s motion for sanctions in the reduced amount \$1,285. Plaintiff Marvin Gonzales Colindres, and plaintiff's counsel of record, Quill and Arrow, LLP, shall make payment to AHM's counsel of record at Wilson Turner Losmo LLP, within 30 days of service of the order by the clerk.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Explanation:

Compliance with December 11, 2025 Court Order

Defendant American Honda Motor Co., Inc. ("AHM" or "defendant") filed this motion to compel plaintiff, Marvin Gonzales Colindres ("Colindres" or "plaintiff") to comply with the December 11, 2025 Court Order.

AHM makes this motion, in accordance with the December 11, 2025 Court Order, for Colindres to produce further responses without objections to Special interrogatories, Form Interrogatories, and Request for Production, Set One, and failed to pay \$1,990 in monetary sanctions as ordered in the Court's order. However, this motion to compel compliance with respect to production is moot as Colindres has already provided the requested documents. (Cardenas Decl., Ex. 1.)

The only item outstanding from the December 11, 2025 Court Order is payment of sanctions. In Colindres' opposition, filed June 12, 2026, their counsel represented that they mailed out the sum on June 12, 2026. (Cardenas Decl. Ex. 2.) Nevertheless, AHM's counsel

represents that as of June 16, 2026, AHM's counsel has still not received the amount. (Ucciferri Decl., ¶¶ 2-3.)

Even assuming *arguendo* that AHM's counsel still has not received the amount, failure to pay monetary sanctions is not a basis and does not warrant additional sanctions. (See e.g., *Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615 ("Newland") [holding that "terminating sanction issued solely because of a failure to pay a monetary discovery sanction is never justified."].) As noted by the Court of Appeal in *Newland*, "many attorneys seem to be unaware that monetary sanction orders are enforceable through the execution of judgment laws." (*Ibid.*) Monetary sanctions "have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction." (*Ibid.*)

Accordingly, this motion is moot.

Production of Plaintiff's Vehicle for Inspection

AHM originally noticed the inspection of Colindres' 2021 Honda Pilot, VIN: 5FNYP5H21MB030555 ("Subject Vehicle") on May 14, 2025, to proceed on June 26, 2025. (Sadanaga Decl., ¶12, Ex. A). On June 20, 2025, Plaintiff served untimely Objections to AHM's Demand for Vehicle Inspection. Plaintiff's objection stated Plaintiff's counsel will not be appearing for the vehicle inspection as presently noticed. "Plaintiff requests that Defendant and Defendant's counsel consider the following alternative dates: January 12, 2026, January 14, 2026, or January 15, 2026." (Sadanaga Decl., ¶ 3, Ex. B). On June 30, 2025, AHM's counsel stated "we have received Plaintiff's objections to AHM's demand for vehicle inspection. Based on Plaintiff's objection, we will take January 15, 2026. We will send amended notice shortly." (Sadanaga Decl. ¶ 4, Ex. C).

On September 19, 2025, AHM served an Amended Demand for Vehicle Inspection to be conducted at Selma Honda located at 2705 Auto Mall Dr., Selma, CA 93662 on January 15, 2026. (Sadanaga Decl., ¶ 5, Ex. D).

On January 9, 2026, Plaintiff once again objected to AHM's Amended Demand for Vehicle Inspection. Plaintiff's objection stated Plaintiff's counsel will not be "Plaintiff requests that Defendant meet and confer with Plaintiff's counsel in order to schedule the vehicle inspection on a mutually agreeable date." (Sadanaga Decl. ¶ 6, Ex. E). On January 9, 2026, AHM's counsel stated, "AHM has received Plaintiff's objections to the amended demand for vehicle inspection. This date was previously agreed upon on June 30, 2025. In fact, it was a date that Plaintiff offered in its objection to the original demand for vehicle inspection. Nonetheless, please provide a date for the vehicle inspection to be completed no later than 1/19/26." (Sadanaga Decl. ¶ 7, Ex. F). This email was ignored. (*Id.*)

A party may inspect land or other property in possession, custody, or control of any other party to the action. (Code Civ. Proc., §2031.010, subd. (a).) A party may move to compel further responses to an inspection demand if the party believes the initial responses contain (1) an incomplete statement of compliance; (2) an inadequate, incomplete, or evasive representation of inability to comply; or (3) an objection that is too general or lacks merit. (Code Civ. Proc., § 2031.310, subd. (a).)

(34)

Tentative Ruling

Re: ***DeLeon v. Fresno Community Hospital and Medical Center, et al.***
Superior Court Case No. 24CECG00946

Hearing Date: August 6, 2026 (Dept. 501)

Motion: by Defendant Robin Linscheid Janzen, M.D. for Summary Judgment, or Alternatively, Summary Adjudication

Tentative Ruling:

To deny Robin Linscheid Janzen, M.D.'s motion for summary judgment, and the alternative motion for summary adjudication.

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Explanation:

“The standard of care against which the acts of a physician are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can only be proved by their testimony, unless the conduct required by the particular circumstances is within the common knowledge of the layman.” (*Landeros v. Flood* (1976) 17 Cal.3d 399, 410, citations omitted.)

“California courts have incorporated the expert evidence requirement into their standard for summary judgment in medical malpractice cases. When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.” (*Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984–985, citations omitted.)

“[W]hen considering the declarations of the parties' experts, we liberally construe the declarations for the plaintiff's experts and resolve any doubts as to the propriety of granting the motion in favor of the plaintiff.” (*Powell v. Kleinman* (2007) 151 Cal.App.4th 112, 125–126, citation omitted.) Thus, a plaintiff's expert declaration in opposition to defendant's summary judgment motion “did not have to be detailed, was entitled to all favorable inferences and was deemed sufficient to defeat the summary judgment motion.” (*Id.* at p. 125, citing *Hanson v. Grode* (1999) 76 Cal.App.4th 601, 607–608.)

Furthermore, the plaintiff does not have to prove that the defendant's acts or omissions were the sole cause of the plaintiff's injuries. Plaintiff only has to present admissible expert testimony that the defendant was a substantial cause of the injuries. (CACI No. 430; *Mitchell v. Gonzales* (1991) 54 Cal.3d 1041, 1052.)

Here, defendant Dr. Janzen has met her burden of showing that he is entitled to summary judgment, as he has submitted the declaration of his expert, Dr. Parks, who

opines that nothing Dr. Janzen did or failed to do fell below the standard of care or caused decedent's death. (Parks Decl., ¶¶ 7-8; UMF Nos. 13, 14.) Dr. Parks also discusses his reasons for concluding that Dr. Roshan did not breach the standard of care or cause decedent's death. (*Ibid.*) Thus, the burden shifts to plaintiff to provide a declaration from a qualified expert stating that Dr. Janzen's care and treatment of decedent fell below the standard of care and caused or substantially contributed to decedent's death.

In her opposition, plaintiff provides the declaration of Dr. Warda, who is an expert in obstetrics and gynecology, specializing in urogynecology. Dr. Warda opines that “the standard of care was not met by Dr. Janzen with regard to her care and treatment of Kyana Hickenbottom” with respect to the failure to document any DVT risk assessment to support her conclusion that there was no evidence of DVT, failure to order any lower extremity Doppler ultrasound for the patient with high risk of DVT, failure to prescribe pharmacologic VTE prophylaxis despite high risk factors for the patient developing DVT, and in concluding the patient was suitable for discharge to home without any clear safety plan for the risk of continued immobility once home. (Warda Decl., ¶¶ 7(a)-(e).) Dr. Warda further opines that “[t]he inadequate assessment and management by Dr. Janzen ... was, to a reasonable degree of medical probability, a contributing factor to Kyana's death”

The court finds that plaintiff has met her burden of showing the existence of triable issues of material fact with regard to whether Dr. Janzen's care and treatment of decedent fell below the standard of care and caused or substantially contributed to her death. (See UMF Nos. 13, 14.) As a result, the court intends to deny Dr. Janzen's motion for summary judgment, and the alternative motion for summary adjudication.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/04/26
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **WA Funding, Inc. v. Clarity Community Management, Inc.**
Superior Court Case No. 25CECG05495

Hearing Date: August 6, 2026 (Dept. 501)

Motion: By Plaintiff/Cross-Defendant WA Funding, Inc. to Strike (Anti-SLAPP) Cross-Complainants Clarity Community Management, Inc. and Michalene Everett's Cross-Complaint

Tentative Ruling:

To deny. (Code Civ. Proc., § 425.16.)

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Explanation:

Evidentiary Objections

The court overrules evidentiary objection numbers 1-2 and 4-10 as to the Waters Declaration. The court sustains as to the first sentence for evidentiary objection number 3, but overrules as to the remainder.

The court overrules evidentiary objection numbers 1 and 7-12 as to the Everett Declaration. The court sustains as to evidentiary objection numbers 4-6. The court sustains as to the first and last sentences for evidentiary objection numbers 2 and 3, but overrules as to the remainder.

Merits

A SLAPP suit (Strategic Litigation Against Public Participation) is a suit brought "primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for redress of grievances." (Code Civ. Proc., § 425.16, subd. (a).)

The anti-SLAPP statute permits a defendant whose free speech rights and/or right to petition have been infringed to move the court to strike the SLAPP suit. The anti-SLAPP statute may be invoked to challenge suits based on four different categories of speech:

- (1) statements made before a legislative, executive, judicial, or other official proceeding;
- (2) statements made in connection with an issue being considered by a legislative, executive, or judicial body;
- (3) statements made in a public forum or in connection with an issue of public interest; OR

(4) any other conduct in furtherance of the exercise of the constitutional right of petition or free speech, in connection with an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).)

Categories (a) and (b) are NOT limited to issues of public interest, while categories (c) and (d) ARE limited to issues of public interest. (*Ibid.*)

The anti-SLAPP is one of the few motions where the burden is on the party opposing the motion. First, the defendant must make a prima facie showing that plaintiff's lawsuit arises from "an act in furtherance of a person's right of petition or free speech under the United States or California Constitutions in connection with a public issue," as defined in subdivision (e). Once defendants make such prima facie showing, the burden shifts to the plaintiff to establish a "probability" that it will prevail on whatever claims are asserted against the defendants. (See Code Civ. Proc., § 425.16, subd. (b); *Dixon v. Superior Court* (1994) 30 Cal.App.4th 733, 744.) The plaintiff must show: (1) a legally sufficient claim (i.e., a claim which, if supported by facts, is sustainable as a matter of law); and (2) that the claim is supported by competent, admissible evidence within the declarant's personal knowledge. (See *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 568.)

The moving party only needs to make a prima facie showing that the cause of action arises from constitutionally protected free speech or petition activity. (*Governor Gray Davis Committee v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 458-459.) Courts have noted that "the mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89.) "In the anti-SLAPP context, the critical consideration is whether the cause of action is based on the defendant's protected free speech or petitioning activity." (*Ibid*, emphasis in original.)

If the moving party can meet the first prong, then the burden shifts to the opposing party to show a probability that he will prevail on the claims based on protected activity asserted against the moving party. (See Code Civ. Proc., 425.16, subd. (b).) The opposing party must produce evidence which would be admissible at trial. (*Chavez v. Mendoza* (2001) 94 Cal.App.4th 1083, 1087.) The probability of prevailing is established if the opposing party presents evidence which would result in a judgment for the opposing party, if believed by the trier of fact. (*Thomas v. Quintero* (2005) 126 Cal.App.4th 635, 637.) In considering this issue, the court looks at the pleadings and evidentiary submissions of the parties, without weighing the credibility or strength of competing evidence. (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291.)

Here, the cross-complaint alleges that WA Funding (Regency) made communications to third parties involved in homeowner's association (HOA) selection decisions that Clarity was operating illegally and had engaged in misconduct. These claims included (1) a communication to an HOA board that Clarity was operating an illegal security business and had stolen proprietary information, (2) a communication to that same HOA board regarding the existence and purported terms of a settlement agreement between Regency and Michalene Everett, (3) communications to other HOA boards and industry participants that Clarity's security operations are illegal and that Clarity used stolen proprietary information, and (4) radio advertisements by Regency

stating it only partners with security companies with their own PPO license. (Cross-complaint, ¶¶ 29, 33, 35.)

First Prong

Regency argues that the cross-complaint contains allegations arising from protected activity. Regency asserts that communications with HOA boards during an active bidding process are protected under the second category—statements made in connection with an issue being considered by a legislative, executive, or judicial body. Courts have found that certain communications to HOA boards may be protected under the third statutory category—statements or writings made in a place open to the public or a public forum in connection with an issue of public interest. (*Damon v. Ocean Hills Journalism Club* (2000) 85 Cal.App.4th 468, 474-475.) HOA boards are quasi-government entities similar to municipal governments. (*Id.* at p. 475.)

Clarity argues that *Damon* does not apply here because *Damon* involved speech concerning governance and management of the HOA. Clarity asserts here the speech involved business competitors seeking the same customers.

Damon evaluated whether the speech at issue was protected under the third category of protected speech. (*Id.* at pp. 474-475.) In *Damon*, the statements had been made at HOA board meetings and in a newsletter. (*Id.* at p. 474.) The court found these were both public forums because they were open to the public. (*Ibid.*) The court also found that the statements were of public interest because they were regarding how a large residential community would be governed. (*Id.* at p. 475.) *Damon* notes that the Legislature has mandated boards to hold open meetings and allow members to publicly speak at such meetings. (*Ibid.*) However, this falls short of finding that communications made to an HOA board on an issue that board is considering constitute protected speech. (*Id.* at pp. 474-480.) Thus, to meet its initial burden, Regency should have addressed whether the statements are protected under the third category as the court in *Damon* did.

A public forum is “a place open to the public where information is freely exchanged.” (*Id.* at p. 475.) Nowhere is it asserted that statements at issue here were made in a public forum. Indeed, there is no discussion that any of the statements were made in any kind of public setting. It is only alleged by Clarity and argued by Regency that statements were made to various HOA boards.

In addition to occurring in a public forum, to be protected, the speech has to be regarding an issue of public interest. (*Id.* at pp. 478-479.) Public interest has been interpreted broadly to include not just “governmental matters, but also private conduct that impacts a broad segment of society and/or that affects a community in a manner similar to that of a governmental entity.” (*Id.* at p. 479.) Here, Regency has focused entirely on the activity being protected under the second category, which does not have a public interest requirement. As such, Regency has not addressed this.

Regency has not presented sufficient legal authority for finding that communications made to an HOA board about an issue that board is deciding are

As Regency did not meet its burden on the first prong, the burden has not shifted to Clarity for the second prong or to establish a commercial exemption. Thus, the court will not address these.

Code of Civil Procedure 425.16, subdivision (c) provides for an award of attorney's fees where the court finds the special motion to strike is frivolous or solely intended to cause unnecessary delay. Here, the court is not inclined to make such a finding. As such, the court denies Clarity's request for attorney's fees.

Tentative Ruling

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